

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.60526 of 2023.
Dipa Akhter
.....Accused-Petitioner
-Versus-
The State
... Opposite Party
Mr. Md. Zulfiquer Matin, Advocate
.... For the accused-petitioner
Mr. Sujit Chatterjee, D.A.G
... For the State

Heard and Judgment on: 06.02.2024.

S M Kuddus Zaman, J:

On an application under section 491 of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the opposite parties should not be directed to bring the detenu Md. Mofizul Islam, son of Shahidul Islam and Razia Begum of village-Chargharmora, Post Office-Madongonj, Police Station-Bandar, District-Narayangonj before this Court to be dealt with in accordance with law and set the detenu (him) at liberty who is detained in jail in connection with Sessions Case No.194 of 2008 arising out of G, R, Case No.37 of 2005 corresponding to Fatullah Police Station Case No.37 dated 27.01.2005 under sections 302/34 of the Penal Code so that the detenu be set at liberty and/or pass such other or further order of orders as to this Court may seem fit and proper.

On conclusion of trial of Sessions Case No.194 of 2008 under sections 302/34 of the Penal Code, 1860 accused Masud was convicted and sentenced in absentia. Pursuant to above committal warrant the detenu was arrested and being detained. This petition under section 491 of the Code of Criminal Procedure at the instance of Dipa Akhter is for production of above detenu before this court and his release from unlawful detention claiming that above detenu is not Masud but Md. Mofizul Islam, the husband of the petitioner.

Mr. Md. Zulfiquer Matin learned Advocate for the petitioner submits that the name of the husband of the petitioner is Md. Mofizul Islam son of Md. Shahidul Islam and he is an inhabitant of Chorgharmora. But the convicted accused Masud was the son of Shahi Shaheb and he was a resident at Madongonj, Fatullah, Narayangonj. The detenu is not Masud but he has been falsely identified as Masud and being detained unlawfully in connection of conviction and sentence passed in Sessions Case No.194 of 2008. As such detenu Md. Mofizul Islam may be released from above unlawful detention.

Mr. Sujit Chatterjee learned Deputy Attorney General submits that the true name of the detenu is Masud and he was accused No.4 of Sessions Case No.194 of 2008 under section 302/34 of the Penal Code, 1860 and on conclusion of trial in absentia he was convicted and sentenced to imprisonment for life. Pursuant to a committal warrant issued in above case the petitioner was rightly arrested on 12.07.2023. The learned Deputy Attorney General further submits that the informant of above case has identified the husband of the petitioner psychically as accused Masud. The Registrar of the marriage of the petitioner and above detenu has submitted a report

stating that the petitioner herself unlawfully changed the name of her husband accused Masud in their kabinnama. The petitioner is trying to save her husband from above conviction and sentence by creating a false identify and address for convict Masud, concludes the learned Deputy Attorney General.

We have considered the submissions of the learned Advocate for the respective parties and carefully examined all materials on record.

As mentioned above Masud was accused No.4 in the ejahar of Session Case No.194 of 2008 under section 302/34 of the penal Code and he was tried in absentia and convicted under above provisions of the Penal Code and sentenced to imprisonment for life and fine. Pursuant to a committal warrant issued in above case the husband of the petitioner was arrested on 12.07.2023.

The petitioner claims that the name of her husband was not Masud but Md. Mofizul Islam. The name of the father and village of above two persons Masud and Md. Mofizul Islam are also different and her husband has been falsely detained erroneously identifying him as Masud who was accused No.4 of Session Case No.194 of 2008.

The learned Deputy Attorney General has submitted two documents, a written statement of the informant of above session case and another statement made by the Kazi who solemnized the marriage of the petitioner with the detune. The informant has identified above detenu as Masud and accused No.4 of above session case. The Kazi of the marriage of the petitioner with above detenu has alleged that the true name of the husband of the petitioner was Masud. But the

petitioner unlawfully changed above name of her husband as Md. Mofizul Islam in the kabinnama by over writing and interpolation.

In order to make an appropriate order in this case we need to have a determination of above factual questions. If above two documents submitted by the learned Deputy Attorney General were genuine and the true name of the husband of the petitioner was Masud or Md. Mofizul Islam as has been claimed by the petitioner. In other words whether the name of the detenu is Md. Mofizul Islam or he was Masud and accused No.4 of Session Case No.194 of 2008 but the petitioner has tried to create a false identity and address for her husband as stated by the learned Deputy Attorney General.

In view of above materials on record we hold that the end of justice will be met if we issue a direction upon the learned Sessions Judge, Narayangonj to inquire into above questions of facts and determine the true identity of above detune as stated above and submit a report to this court within a specified period of time.

Accordingly we are directing the learned Sessions Judge, Narayangonj to inquire into the question whether the detenu is Masud, who was accused No.4 of Sessions Case No.194 of 2008 or Md. Mofizul Islam who was not connected with above case as has been claimed by the petitioner and submit a report to this court within 30(thirty) working days from the date of receipt of this order.

This matter shall appear in this list for hearing on 23.04.2024.

Md. Ali Reza, J:

I agree.